

24VECV03795 24VECV03795

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-07-02

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Case Number: 24VECV03795 Hearing Date: July 2, 2026 Dept: U

SUPERIOR COURT OF
THE STATE OF CALIFORNIA

FOR THE COUNTY OF
LOS ANGELES - NORTHWEST DISTRICT

HAYK HARUTUNYAN, an individual,

Plaintiff,

vs.

VACHAGAN

AGAVELYAN, an individual; ANUSH AVETISYAN, an individual; and DOES 1-10,
inclusive,

Defendants.

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CASE NO: 24VECV03795

[TENTATIVE] RULING RE: DEFENDANTS'
MOTIONS TO COMPEL PLAINTIFF'S FURTHER RESPONSES TO REQUESTS FOR PRODUCTION OF
DOCUMENTS AND SPECIAL INTERROGATORIES; REQUEST FOR ATTORNEYS' FEES

Dept. U

8:30 a.m.

July 2, 2026

I.

BACKGROUND

This case arises from a motor vehicle
accident that occurred on June 26, 2023.

On August 12, 2024, Plaintiff Hayk
Harutunyan filed his original complaint against Defendants Vachagan Agavelyan
and Anush Avetisyan, alleging: (1) negligence; (2) negligence per se; and (3)
negligent entrustment.

On
December 12, 2024, Plaintiff filed his first amended complaint (the "FAC") against
Defendants, alleging: (1) negligence; (2) negligence per se; and (3) negligent

entrustment.

On January

24, 2025, Defendants filed their answer to the FAC.

On March

31, 2026, Defendants served Plaintiff with supplemental requests for production of documents (the "RFP") and supplemental special interrogatories (the "SROGs"). (Minasyan decl., ¶ 2.)

Plaintiff

failed to respond to the RFP and the SROGs until May 19, 2026. (Minasyan decl., ¶¶ 3-5.) Plaintiff's failure to timely respond to the

RFP and the SROGs within 30 days waived objections. See Code Civ. Proc., §§ 2030.290, 2031.300.

On

May 22, 2026, and on May 28, 2026, Plaintiff served amended discovery responses. After repeated correspondence with defense

counsel, Plaintiff's counsel stated that Plaintiff would not be providing

further amended responses. (Minasyan

decl., ¶¶ 6-7.)

On June 5,

2026, Defendants filed their motions to compel Plaintiff's further responses to the RFP and the SROGs.

Also

on June 5, 2026, Judge Anthony Mohr granted Defendants' ex parte application for an order shortening time for notice and hearing on the motions to compel further.

On June 18,

2026, Plaintiff filed his opposition briefs.

As of 5:00

P.M. on June 29, 2026, Defendants had filed no reply brief(s).

II.

LEGAL STANDARD

a.

Motion to

Compel Further Production of Documents

“On receipt of a response to a

demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that ... [a] statement of compliance with the demand is incomplete[;]
... [a] representation of inability to comply is inadequate, incomplete, or evasive[; or] ... [a]n objection in the response is without merit or too general.”² Code Civ. Proc., § 2031.310 (a).³

b.

Motion to

Compel Further Responses to Interrogatories

Where a demanding

party determines that a responding party's responses to interrogatories are evasive or incomplete, or that said responses state objections that are too general or without merit, the demanding party may file a motion to compel the responding party's further response.⁴ Code Civ. Proc., § 2030.300 (a).⁵

III.

DISCUSSION

Defendants

move to compel Plaintiff's further responses to RFP #1, 3-6 and to SROGs #1-4.

a.

The RFP motion is denied as to RFP #1
but granted as to RFP #3-6.

Defendants

move to compel Plaintiff's further responses to RFP 1, 3-6.

RFP

#1 seeks Plaintiff's tax records.

Defendants present no persuasive argument for why they have good cause to obtain Plaintiff's tax records in this case.

While Defendants state such a document is “highly relevant as it correlates directly to Plaintiff’s claimed damages in this case” (Motion, p. 4:24-25), Defendants fail to explain how exactly tax records are relevant to proving damages. Defendants also fail to explain how any probative information gleaned from Plaintiff’s tax records would not be outweighed by Plaintiff’s individual right to keep such information private.

RFP

#3-6 seek documentation concerning repairs to the subject vehicle, Plaintiff’s return of the subject vehicle to the leaseholder and communications related to the incident. Plaintiff objects on general grounds that the information is equally available to Defendants and that its disclosure would violate attorney-client privilege. Plaintiff also provides a statement that he has made a diligent search, but no responsive documents were found.

Plaintiff’s

objections to RFP #3-6 are without merit.

As an initial matter, Plaintiff waived his objections by failing to timely respond to discovery. As to the substance of Plaintiff’s objections, the identified categories of documents are not obviously equally available to Defendants, as they are types of documents which Plaintiff is more likely to possess and control. To the extent that Plaintiff believes complying with RFPs 3-6 would require the disclosure of material covered by attorney-client privilege, Plaintiff has failed to produce a privilege log. If Plaintiff has a good faith basis for claiming attorney-client privilege, Plaintiff will need to produce a detailed privilege log with his further response.

As

to Plaintiff’s statement that he has made a diligent search but no responsive documents were found, Plaintiff’s statement lacks credibility. The subject documents are not of a type that are likely to be entirely missing and unrecoverable. Additionally, Plaintiff has failed to state the precise reason for his inability to comply (e.g., were the documents lost or destroyed?). Plaintiff has also failed to state, where applicable, the name and contact information of individuals who he believes have possession of the documents. The response is insufficient.

In

sum, Defendants fail to show good cause warranting further production as to RFP #1 at this stage of the case. However, the

categories of documents covered by RFP #3-6 are plainly relevant to this case, and Defendants have demonstrated good cause for compelling their further production. The motion will be denied as to RFP but granted as to RFP 3-6.

b.

The SROGs motion will be granted.

Defendants

move to compel Plaintiff's further responses to SROGs #1-4.

As

an initial matter, the Court notes that Defendants' separate statement pertaining to the SROGs appears not to have made it into the Court file. While Plaintiff's opposition brief references such a separate statement (see SROGs Opposition, p. 3:19-22), the Court finds no separate statement addressing the SROGs in the Court file. Even so, Defendants' motion to compel Plaintiff's further responses to the SROGs sufficiently walks the Court through the SROGs, Plaintiff's responses, and Defendants' proffered reasons for compelling a further response. (See SROGs Motion, pp. 4:27-6:6.) The Court construes the text of the motion as sufficient to satisfy the separate statement requirement.

SROG

1 asks Plaintiff to identify individuals who worked on the vehicle. While Plaintiff objects that he lacks personal knowledge of who such individuals were, such information should be within Plaintiff's power to obtain because Plaintiff owns the repair shop where repairs took place. Additionally, Plaintiff previously represented that "Tony" worked on the vehicle, and Plaintiff has not provided additional information on how to contact "Tony." Plaintiff is required to provide a further response to SROG #1.

SROG

2 asks Plaintiff to describe internal damage to the vehicle. Plaintiff offers the vehicle's repair estimate without further describing internal damage. Plaintiff's response is not responsive to the interrogatory being posed. Plaintiff is required to provide a further response to SROG 2.

SROGs

3-4 seek dates on which the vehicle was fully repaired and returned to the leaseholder. Plaintiff has offered approximate dates ("In

or around November 2023"). This is

insufficient. Plaintiff is required to

provide a further response to SROGs 3 and 4 by providing exact dates if such

dates are, as the Court would expect, are available to Plaintiff through

diligent efforts to find and review information in Plaintiff's possession or

control.

c.

Calculating Attorneys' Fees

The Court shall impose a

monetary sanction against any party "who unsuccessfully makes or opposes a

motion to compel further response... unless it finds that the one subject

to the sanction acted with substantial justification or that other

circumstances make the imposition of the sanction unjust." 22 Code Civ.

Proc., §§ 2031.310 (h), 2030.300 (d).

Plaintiff's discovery responses are incomplete and

noncompliant with the Discovery Act. Despite Defendants' efforts

to meet and confer, Plaintiff failed to sufficiently supplement his production. The

Court has examined Plaintiff's arguments in his opposition briefs. Except as to the issue of Plaintiff's tax records,

Plaintiff's arguments are without merit. Defendants are entitled

to sanctions.

As

a combined total for both of their motions, Defendants request \$1,480.00 in

attorneys' fees, representing at least 6.0 hours of attorney time at a rate of

\$220.00/hour, plus each motion's \$80.00 filing fee. As to the number of hours billed, Defendants

seek 2.0 hours to draft the motions, 2.0 hours to draft reply briefs, and 2.0

hours to attend the motions' hearing.

Defendants'

request is reasonable as to the hourly rate but inflated as to the number of

hours billed. Two hours is a reasonable

amount of time for counsel to have spent drafting both motions. Defendants filed no reply brief(s). The Court will award Defendants 1.0 hour to

attend the single hearing on both motions.

The lodestar will be adjusted accordingly.

In

sum, Defendants will be awarded sanctions in the form of attorneys' fees against Plaintiff in the total amount of \$820.00, representing 3.0 hours of attorney time at \$220.00/hour, plus each motion's \$80.00 filing fee. ($\$220.00/\text{hour} \times 3.0 \text{ hours} + \$80.00 \text{ filing fee} \times 2 = \820.00 .)

IV.

CONCLUSION

Defendants

Vachagan Agavelyan and Anush Avetisyan's motion to compel further responses to Supplemental Request for Production of Documents from Plaintiff Hayk Harutunyan is DENIED as to RFP #1 but GRANTED as to RFP #3-6.

Defendants

Vachagan Agavelyan and Anush Avetisyan's motion to compel further responses to Supplemental Special Interrogatories from Plaintiff Hayk Harutunyan is GRANTED as to SROGs #1-4.

Defendants

Vachagan Agavelyan and Anush Avetisyan are AWARDED sanctions against Plaintiff Hayk Harutunyan in the total amount of \$820.00, to be paid within 20 days..

Defendants Vachagan Agavelyan and Anush Avetisyan are ORDERED to give notice.

DATED: July 2, 2026

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Judge of the
Superior Court